

CLIENT ACKNOWLEDGEMENT AND AGREEMENT

客戶確認及協議書

Name of Client

客戶姓名 : _____

Name of Introducer(s)

介紹人 : _____

I intend to purchase life insurance policy(ies) and therefore acknowledge and agree that:

本人欲購買人壽保險，據此，本人現確認及同意：

1. finexis advisory (HK) Limited ("finexis") is appointed as my insurance broker and that finexis is responsible for arranging the insurance policy and, for this purpose. Unless I have assigned my introducer(s) to represent me, I should only deal directly with the finexis. finexis will liaise with insurance companies to obtain insurance quotations and terms of available insurance products for my consideration. Also, finexis may submit the application forms on my behalf to the insurers consented to by me (until and unless such authority is revoked subsequently by me in writing).

匯信顧問(香港)有限公司（“匯信”）被委託為本人之保險顧問，負責安排保單，而就此目的而言，本人明白除非本人的介紹人是本人授權的指定代表，否則本人應直接與匯信聯繫有關保單事宜，匯信並可與保險公司聯絡以取得有關其提供的保險產品的報價及條款供本人作考慮。本人同意，匯信可以本人名義向保險公司提交申請表格（直至及除非本人以書面方式撤銷該授權）。

2. I understand and acknowledge that finexis is remunerated for its services by receiving fees or commission paid by the insurers which may be based on such factors such as premiums, underwriting costs and other administrative expenses and/or fees.

本人明白及確認匯信從保險公司收取費用或佣金，以作為其所提供服務的酬金。支付匯信的酬金可包括保險公司基於例如保費及承保盈利及行政支出補償及/或費用等因素向匯信支付的費用或佣金。

3. I also acknowledge that my introducer(s) (if applicable) do not represent finexis, and finexis will not be responsible for any advice given by the introducer(s) with regards to the policy. Any policy related payments should be paid directly to the insurer. Unless the introducer(s) is given power of attorney to represent me, all decisions regarding the policy will need to be agreed by me directly.

本人明白及確認我的介紹人（如適用），並不代表該匯信，匯信就介紹人對於有關保單所給予本人的任何意見不承擔任何責任。本人明白保單的保費應直接支付予相關保險公司（而非介紹人）。除非該介紹人是本人授權的指定代表，否則他不應代表本人參與安排保單的過程。

4. I understand and agree that my introducer(s) (if applicable), is remunerated for its referral service by receiving an introducer(s) fee paid by finexis. The commission, after inception of the policy, will be paid out to finexis, and finexis will then dispense the introducer(s) fee to my introducer(s).

本人亦明白該介紹人（如適用）會因此推薦服務而收到由匯信支付的介紹費。本人同意進行在此提及的保險交易，即代表本人同意匯信收取佣金及本人的介紹人會收取介紹費。保險公司僅在保單生效後向匯信支付該佣金，而匯信之後將根據合同條款向我的介紹人支付介紹費。

5. I have provided all the necessary information that finexis have requested and I declare that all information is true, complete and accurate. I am not aware of any other facts or information which would be relevant for finexis to be made aware of in order to provide me with advice on my insurance needs. If there is any material change to any information provided to finexis, I shall promptly update finexis in writing.

本人已向匯信提供一切其要求提供的資料且該資料為真實、完整及準確。本人並沒有注意到任何對匯信為向本人提供保險建議而需知的相關事實或資料。如向匯信所提供資料有任何重大變更，本人將從速以書面形式通知匯信。

6. I have received and read the “Personal Information Collection Statement” (the “Statement”). I understand and agree to the Statement. I confirm my consent as referred to in the section entitled Use and Provision of Personal Data in Direct Marketing of the Statement.

本人已收訖及閱畢《個人資料收集聲明》（“聲明”）。本人清楚明白及同意聲明的內容。本人同意該聲明內以個人資料在直接促銷中的使用與提供為標題的內容。

☐ Please tick the box if you agree with the provision, use and transfer of your personal data for direct marketing purposes in accordance with the Statement.

若同意根據聲明提供、使用及轉移閣下的個人資料作直接促銷用途，請在框內劃上勾號。

7. By providing my personal information and data, I acknowledge and consent that finexis may collect, hold, use and disclose my personal information and data and finexis may disclose or transfer (within or outside of Hong Kong) any of my personal information and data:

- (1) Upon my instruction to submit applications to the insurer(s) specified by me, I expect multiple applications to be submitted on my behalf by finexis to various insurers for the purposes of preliminary underwriting and hereby authorise finexis to complete and submit the relevant forms to these insurers that I will pre-sign and using the information that I have provided to finexis for this purpose. Finexis will, in due course, provide me with a copy of the relevant completed application supporting the insurance policy finally issued.
- (2) To finexis's affiliated businesses and third party service providers acting on finexis's behalf for the purposes of customer fulfillment, business administration, claims processing, business reporting, and statistical analysis;
- (3) To insurers, reinsurers and other insurance intermediaries involved in issuing me with insurance and claims processing; and
- (4) In making disclosures as set out by any applicable law, rules and regulations, codes of practice or guidelines of any applicable jurisdiction or any governmental or regulatory authority in or outside Hong Kong.

當本人提交本人的個人資料和數據時，本人確認及同意匯信可以收集、持有、使用及披露本人的個人資料和數據，且匯信可將本人的任何個人資料和數據披露或轉移（香港境內或境外）：

- (1) 根據本人的指示提交申請書給我所指定的保險公司時，本人預期匯信將代表本人向多間保險公司提交多份保險申請書用於初步承保，並特此授權匯信使用本人在《客戶資料披露》或《客戶資料收集書》中提供給的信息或所有其他由本人提供的數據填寫保險申請書（該申請書已由我或我指定的保單申請人預先簽署），並將其提交給保險公司。匯信將於適當時機，向本人提供一份與保單繕發後相關之填寫完整的申請書副本供我審閱。
- (2) 至匯信的聯繫公司及代表匯信的服務供應商，以作處理客戶之履約、業務行政、索賠處理、業務報告及統計分析之用；
- (3) 至與本人簽發保單和索賠事宜有關的保險公司、再保險公司及其他保險中介機構；以及
- (4) 在因應香港或香港以外之任何適用的司法管轄區、政府或監管機構的法律、規則及規例、實務守則或指引所要求作出的披露。

8. I understand that if I choose not to provide finexis with my personal information and data, I may not be able to receive the information, products or services I need or to process any other requests.

本人明白，如本人不向匯信提供本人的個人資料及數據，本人可能無法取得本人所需要的資訊、產品或服務，或本人的請求不能被處理。

9. I have a right to request access to (including the type of personal information held by finexis) and correction of all my personal information unless this is prohibited by the Personal Data (Privacy) Ordinance (“PDPO”) under which finexis may refuse to do so. In accordance with provision of PDPO, finexis has the right to charge a reasonable fee for processing such data access and correction request. Requests will be handled by finexis's Data Privacy Officer at the address provided below:

本人有權要求查閱及修改本人的全部個人資料（包括匯信持有的個人資料類型）（除非匯信依據《個人資料（私隱）條例》（“私隱條例”）之規定禁止，得予以拒絕）。根據“私隱條例”的規定，匯信有權就處理該查閱及修改資料之要求徵收合理費用。本人查閱及修改資料之要求將由匯信的個人資料保護主任處理，地址如下：

finexis advisory (HK) Ltd

Unit 01, Floor 23A, Tower 2, The Gateway, Harbour City, Tsim Sha Tsui, Kowloon, Hong Kong

匯信顧問(香港)有限公司

香港九龍尖沙咀海港城港威大廈2座23A樓01室

電話 Tel: +852 2115-7888

電郵 Email: compliance.finexis@finexis.com.hk

10. I understand that any insurance policy/contract is a contract of utmost good faith and that it is my duty to disclose on the application form all material facts of which I am or ought to be aware.

本人明白保單/保險合約乃以最高誠信的原則訂立。本人明白在保險申請書內必須提供所有重要事實及正確填寫。

11. While finexis and its representatives may provide advice or recommendation on insurance solutions, I will make an independent analysis and decision with respect to all dealings with such solutions or other investments.

儘管匯信或匯信的任何代表可向本人提供有關安排或購買保險的意見或建議，本人在購買有關保險或作出其他相關投資時會作出獨立分析及決定。

12. finexis has not provided to me (and I have not relied upon) any legal and/or tax advice. I am advised to take my own legal and/or tax advice on all matters relating to the entering into of any insurance plan or the purchase of the life insurance policy. I will consult / have consulted with my own legal and/or tax advisors to the extent I consider necessary.

匯信並沒有向本人提供（及本人亦沒有依賴）任何法律及/或稅務意見。本人已被忠告就所有關於簽訂保險計劃或購買人壽保險是可徵詢法律及/或稅務意見。若本人認為有需要，本人會/已徵詢本人的法律及/或稅務顧問。

13. Some insurers that finexis represent and/or recommend for my evaluation may not be under the jurisdiction of my country of residence and/or domiciled in Hong Kong. I understand that I will need to satisfy myself that I will be afforded requisite protection in the jurisdiction in which the contract of insurance issued to me is subject. To protect my interest, I confirm that finexis' licensed representative has provided the information below:

- a. Name and address of the insurer not regulated under Hong Kong laws;
- b. Country of incorporation of the insurer not regulated under Hong Kong laws;
- c. Financial standing of the insurer not regulated under Hong Kong laws;
- d. Which country's jurisdiction and governance will be followed for disputes under the insurance contract

經匯信提供給本人參考的保險公司有可能並未在本人的居住及/或居籍地及香港獲得許可經營保險業務。本人明白，我有責任自行確保在保險合約適用的司法管轄區內能獲得應有的保障。為保障客戶的利益，匯信的保險顧問已為本人提供以下資訊：

- a. 未在香港獲授權的保險人的名稱及地址;
- b. 未在香港獲授權的保險人註冊成立的國家;
- c. 未在香港獲授權的保險人的財政狀況;
- d. 合約下的糾紛會以哪個國家的法律裁決。

14. Non face-to-face Declaration (please tick if for Non face-to-face application)

非直接會面聲明 (如非面對面申請，請勾選)

- ☐ I, the undersigned, hereby confirm that pursuant to a virtual meeting held on _____, I have expressly requested finexis and its representatives to provide advisory services and to arrange for the placement of insurance.

This request constitutes a reverse enquiry initiated solely by me. I confirm that this request was not made pursuant to any specific marketing or solicitation efforts directed at me by finexis.

本人，即下方簽署者，特此確認，根據在_____舉行的一次虛擬會議，本人已明確要求匯信及其代表提供諮詢服務並安排保險事宜。

此請求表明此反向問詢僅由我本人發起。本人確認，該請求並非基於匯信針對本人所進行的任何特定營銷或招攬活動而提出。

By signing this acknowledgement and agreement, I, confirm that I have read and consent to the above. 通過簽署本確認書及協議，本人確認並同意已閱讀以上內容。

Name of Client

客戶姓名

Signature

客戶簽署

Identity Number

證件號碼

Date

日期

Licensed Representative's Declaration 持牌代表聲明

As a Licensed Representative of finexis, I declare that: I have invited the Client to carefully read the provisions contained herein, to ask any questions or seek independent advice if the Client wishes to do so. 作為匯信的持牌代表，本人在此聲明：本人已提醒客戶仔細閱讀本確認書之內容，並提醒客戶當其認為有需要時提出疑問及徵詢其他獨立意見。

Name and License No.

持牌代表姓名及牌照號碼

Signature and Date

持牌代表簽署及日期